

**SFIO Vs Adarsh Buildestate etc. COMA No.5/2019
CNR No. : HRGR-01-007022/2019**

Since there are 187 different accused, the proceedings of the case with respect to each of the accused, including the bail applications and other applications filed by them, is as under:

**Present : Sh. Lokender Singh Raghav, Senior Standing Counsel,
Sh. Hari Kishan, Prosecutor, along with Sh. Prashant
Baliyan, Investigating Officer, complainant, SFIO.**

**Accused Companies, A-1 to A-70
And Accused No. 123 Rohit Modi**

**Present : Accused Rohit Modi, authorized representative of the
above companies not produced by the jail authorities.**

As mentioned in the earlier orders, all the above referred accused companies are being represented by accused, Rohit Modi, who is already in custody this case in personal capacity also and at present lodged in Central Jail, Jaipur (Rajasthan) in another case. But today, he has not been produced by the jail authorities, despite production warrant. No one has comes forward to explain any reason. As such. Let fresh production warrant of accused Rohit Modi be issued for 16.09.19, with directions of Superintendent of Police, Jaipur and Incharge Central Jail, Jaipur to produce him before this court and also to explain why he is not being produce before this court despite due information. A copy of this para of order be given to investigating Officer, who is present today in the court to inform the Jaipur Police in this regard and take up the issue with the SP concerned, Jaipur.

**Accused Companies, A-71 to A-78
(And accused A-135, Sidharth Chauhan)**

The anticipatory bail application filed by accused A-135, Sidharth Chauhan in his personal capacity as well as being Director and authorized representative of accused companies A-71 to A-78, has been dismissed vide detailed order dated 1.8.2019. But despite this he has not

appeared or surrendered. No other authorized person on behalf of above accused-companies has appeared despite notice to the above accused. As these companies shall be represented by above accused.

However, in order to procure the service of accused, name above in his personal capacity, warrant of arrest issued against him has not been received back. As such his fresh warrant of arrest be issued for 16.09.2019 to be executed by DCP Hq., Gurugram through a senior police officer, who will appear on the date fixed to explain, if it remained unexecuted.

Accused Companies promoted by accused, Vivek Harivyasi:

- A-79 : A3G Infra Private Limited
- A-90 : Cynosure Real Estate Pvt. Ltd.
- A-91 : EOS Developers Pvt. Ltd.
- A-92 : Adler Infra Ventures Pvt. Ltd.
- A-93 : Headstrong International Exports Pvt. Ltd.
- A-115: Vivek Harivyasi in custody.

Present: Accused Vivek Harivyasi, in custody No. A-115, with counsel.

Accused Vivek Harivyasi produced in custody after expiry of 15 days of custody, in his personal capacity as well for the above referred companies being its authorized representative as per the observations made in the earlier order dated 30.7.2019. Heard. Pending further proceedings, he is remanded to judicial custody till 16.09.19 and be produced for further proceedings.

**Accused Company Prince Realbuild Pvt. Ltd., A-80 :
(through Naveen Kumar, AR)**

Bailable warrant of the above accused-company through its AR received back unexecuted. Fresh bailable warrants be issued for 03.10.19.

Accused Companies,

A-81 : HNS Infratech Pvt. Ltd.

A-82 : HNS Projects Pvt. Ltd.

**Present : Accused A-140, Surender Singh in custody
Sh. Anuj Lohia, Advocate for accused.**

Application for regular bail filed by accused A-140, Surender Singh after surrendering before the court is already dismissed. Now he is in custody and his presence is also marked being Director and AR of above said two companies. He has been produced after expiry of his 15 days custody. Heard, pending further proceedings, he is remanded to judicial custody and be produced on 16.09.19 for further proceedings.

Accused-Company, A-83 : Sear Built Pvt. Ltd.

Present : None

Bailable warrant of above said accused company received back unexecuted with the report that address is incomplete. Fresh bailable warrant be issued for the date fixed, 03.10.19 on filling of complete address.

**Accused-Partnership Firm, A-84, Abhay Kumar and Associates
(through Accused Abhay K. Shah, A-127, its partner)**

Present : Sh. Joydip Bhattacharya, Advocate, for accused.

An application for anticipatory bail on behalf of accused Abhay Kumar Shah, being a partner of above said firm, has been filed today which has been adjourned for 13.9.2019 for reply and arguments. As such further orders in this regard will be passed accordingly after the decision of that bail application. Prayer made for interim stay and exemption has been heard and appropriate orders being passed along with other accused in later part of this order. As such, main file be also put up on date fixed for hearing of bail application of this accused.

**Accused Company, A-85 : Axtron Tex Chem(I) Pvt. Ltd.
and accused No. A-130, Jainam Rathod.**

Present :

**Accused No.A-130, Jainam Rathod in custody with
Shri Salim Malik Advocate along with Gulshan Sharma
Local Advocate**

Accused No. A-130, Jainam Rathod has already surrendered and arrested. His regular bail application has been dismissed. As such his presence is marked on behalf of above accused company, A-85, as well as in his individual capacity. He has been produced after expiry of his 15 days custody. Heard, pending further proceedings, he is remanded to judicial custody and be produced on 16.09.19 for further proceedings.

Accused companies :

A-86 : Laxmikripa Buildcon Pvt. Ltd.

A-87 : Riddhi Siddhi Infraprojects Pvt. Ltd.

A-88 : Riddhi Siddhi Infratech Pvt. Ltd.

Present:

**Shri Jai Singh Chauhan AR of above companies alongwith
Shri Harash Kaushik Advocate and Sh. Kuldeep Singh Local
Advocate**

All the above accused companies are duly represented by Shri Jai Singh Chauhan, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 03.10.19 for further proceedings.

**Accused-Partnership Firm, A-89: SL Bohra & Associate
(through Accused No. A-170 and A-171 its partners)**

Present:

**Shri Ankur Sood Advocate along with Shri Pankaj Motsara Local
Advocate for the all the above accused.**

An application for anticipatory bail on behalf of accused-firm, A-89, has been filed by the applicant-accused, No. A-170 and A-171 today, which has been adjourned for 13.9.2019 for reply and arguments. As such further orders in this regard will be passed accordingly after the

decision of that bail application. Prayer made for interim stay and exemption has been heard and appropriate order are being passed in this regard in later part of this order along with other accused. As such, main file be also put up on date fixed for hearing of bail application of this accused. As such further orders in this regard will be passed accordingly.

Accused Companies No.:

A-94: Aarti Marketing Pvt. Ltd.

A-95: Caranation Trading Pvt. Ltd.

A-96: Cyan Financial Solutions Pvt. Ltd.

A-97: Lever Finvest Pvt. Ltd.

Present:

Rahul S/o Mangal Sain, AR of above companies

Shri Arvind Jain Advocate along with Dinesh Kumar Local Advocate

All the above accused companies are duly represented by Shri Rahul son of Sh. Mangal Sain, Authorized representative, who has already appeared as per section 305. As such he is directed to appear on date fixed 03.10.19 for further proceedings.

**Accused company No. A-98 : Rolex Exports Pvt. Ltd.
(through its AR)**

Present:

Naresh Kumar S/o Har Prasad AR above company

**Shri Arvind Jain Advocate along with Dinesh Kumar, Local Advocate
and A-98**

The above accused company is duly represented by its AR, Naresh Kumar, who has already appeared as per section 305. As such he is directed to appear on date fixed 03.10.19 for further proceedings.

**Accused-companies : A-99 : Dinkar Commercial Pvt. Ltd.
and A-100 : Amarendra Financial Pvt. Ltd. Along with and Accused
No. A-176 Raj Kumar Modi, its director**

Present: Accused absent.

Admittedly after dismissal of his regular bail application of accused Raj Kumar Modi, he did not appear despite the fact that he was granted interim bail till the disposal of the regular bail application and thus was bound to appear on 30.08.19, when the bail application was fixed for orders. As such, warrant of arrest was issued for today but it remained unexecuted. Fresh **warrant of arrest** be issued against the accused for 16.09.19. Notice under Section 446 Cr.P.C. was also sent to the surety as well as identifier. Sh. Rajesh Ranjan, Advocate, being identifier of Surety and alleged that he has nothing to do with this aspect as he has simply signed the bail bonds. However, since he had identified the surety, he assured that he will get the notice under Section 446 Cr.P.C. served on the surety by assisting the executing official. Accordingly fresh notice under Section 446 Cr.P.C. be issued against the surety Smt. Rekha Modi and learned counsel will assisted the executing official to trace and serve the notice upon the surety.

Accused-companies:

A-101: Alba Polymers Ltd.

A-102: Channel Nine Entertainment Ltd.

A-103: Funny Software Ltd.

A-104: Gold Line International Finvest Ltd.

A-105 : Inceptum Enterprises Limited

A-106 : Kanak Krishi Implements Ltd.

A-108: Porsche Capital Market Ltd.

A-109 : Sagitarius Advertising Ltd.

A-110: Satkar Finlease Ltd.

A-111 : Surya Marketing Ltd.

A-112 : Vishal Digital Studio Color Lab Pvt. Ltd.

Present:

Sh. Abishek, AR of A-101, along with Shri Kaushal Kumar Advocate.

Sh. Deepak AR of A-102 along with Shri Surender Kr. Advocate.

Sh. Ram Naresh AR of A-103 along with Ms. Anita Shit Advocate.

Sh. Pawan Sharma AR of A-104, along with Shri Vichitra Sharma Advocate.

Sh. Annop, AR of A-105 along with Sanjay Joon Advocate.
Sh. Niraj Kumar, AR of A-106 along with Nitesh Bhardwaj Advocate.
Sh. Ranjan Kumar Advocate for Jishan, AR of A-108
Sh. Vikas Paul, AR of A-109 along with Sachin Bali Advocate.
Sh. Raju Yadav, AR of A-110 along with Rajesh Kumar Advocate.
Sh. Ritik Sharma, AR of A-111 along with Sh. Varun Chugh Advocate.
Sh Devender Kumar, AR A-112 along with Sh. Rohit Arora Adv.

The ARs of all the above accused companies as named above except Jishan, AR of accused, A-108, are present. Their presence is accordingly marked on behalf of the accused companies referred above. An application for exemption of Jishan, AR of accused, A-108 has been filed which is allowed as per the grounds mentioned therein. And he is directed to appear on date fixed, 03.10.19. Where as all other ARs who have appeared, have also filed their respective affidavits, Power of Attorney alongwith resolution of the company authorizing each of them to appear on behalf of the above accused-companies in this complaint as per section 305 of Cr.P.C. As such, the presence of all the above accused-companies stand complete. And they all are directed to appear on date fixed, 03.10.19 for further proceedings.

A-107 : Padmawati Art Creation Pvt. Ltd.

Bailable warrant of above mentioned accused company, A-107 received back unexecuted. Fresh bailable warrant be issued for 3.10.2019.

Accused who are in custody but not produced by Jail Incharge

A-113 : Mukesh Modi.
A-114 : Rahul Virender Modi.
A-120 : Vaibhav Lodha.
A-122 : Virender Modi
A-123 : Rohit Modi.
A-125 : Rajeshwar Singh

A-126 : Bharat Modi
A-131 : Ishwar Singh Sindal
A-134 : Vivek Purohit
A-142 : Bharat Dass Vaishnav

All the above named accused have already been arrested in this case and sent to judicial custody. However, after the arrest of all the above accused, they were taken by Jaipur Police in another case and were lodged in Central Jail, Jaipur. And even on the last date of hearing also, all they were not produced by Superintendent Central Jail, Jaipur, despite production warrants and thus fresh Production warrants were again issued for today but again none of them has been produced and there is no explanation in this regard. As such let fresh production warrants of these three accused be issued for 16.9.2019. Explanation of the Superintendent, Central Jail, Jaipur for non production of the above said accused before this court be also called for.

A-117 : Priyanka Modi in custody with her Advocate.

Accused Priyanka Modi produced in custody in her personal capacity after expiry of custody of 15 days. Heard, pending further proceedings, she is remanded to judicial custody till 16.09.19 and be produced for further proceedings.

A-167 : Rajeev Verma
A-168 : Sushil Maloo
A-169 : Rajendra Singh Bhandari

Present : All the above accused on bail
Shri Mohan Chaudary Advocate

All these accused persons have already surrendered and vide order dated 13.8.2019 their bail application was allowed and later on on 20.8.2019 they furnished bail bonds and moved an application under Section 317 Cr.P.C. for seeking permanent exemption of personal appearance. Copy of that application was duly supplied today. It was

fairly conceded by the counsel for the complainant, SFIO that atleast till the presence of all the accused persons and start of further regular proceedings personal appearance of all these three accused persons can be exempted. In these facts and circumstances without stating anything on the merits of the controversy, the application filed by all the three applicants under Section 317 Cr.P.C. is partly allowed and it is ordered that personal appearance of the above three accused persons will remain exempted subject to further orders of this court and subject to the condition that their Advocate will appear on each and every date of hearing to record the proceedings and then they will appear as and when required.

**Accused who are absent but moved bail applications
under section 438 Cr.P.C.**

A-118 : Jinendra Vyas
A-127 : Abhay K. Shah
A-137 : Shinder Pal Singh
A-138 : Girbir Singh Sandhu
A-155 : Mahender Singh Tak
A-163 : Megha Chauhan
A-164 : Indu Tak
A-165 : Shyam Bihari Gupta
A-166 : Ravi Tak
A-170 : Sudhir Mehta
A-171 : Raj Kumar Bohra
A-172 : Saurabh Tak
A-178 : Mahesh Dutt Sharma
A-187 : Mahesh Kumar Tak

As per theailable warrants issued, anticipatory bail applications on behalf of all the above referred accused have been filed. Copies of the same have been supplied to the counsel for complainant, SFIO and the matter is adjourned to 13.9.2019 for reply and arguments. The case will be taken up at 2.00 p.m. So far as the plea of interim protection either by way of exemption till the decision of bail application or interim stay on the arrest of the applicants, is concerned, since all these applicants have invoked the jurisdiction of this court under Section 438

Cr.P.C. and matter is now adjourned to 13.9.2019 for reply and arguments and thus in case they shall be arrested, the bail applications shall rendered infructuous and then complete record has been supplied to them on today. In these peculiar facts and circumstances, in the interest of justice and to give a fair chance to the applicants, it is ordered that till the decision of their bail applications, no coercive process shall be initiated against them and thus the prayer moved for interim relief is accordingly disposed off without stating anything on merits of the controversy.

Accused, who are not served with Bailable warrants.

A-144 : Joydeep Dass Gupta
A-145 : Lovekush Sharma
A-148 : Avanish Kumar Tyagi
A-151 : Poonam Madan
A-152 : Nazima Khan
A-153 : Shabbir Khan
A-156 : Praveen Maheshwari
A-157 : Rajeev Maheshwari

Bailable warrants of all the above referred accused remained unexecuted. But accused Numbering A-144 and A-156 and A-157 has filed bail applications. The bail application of A-144 is already adjourned to 10.09.19 where as bail applications of other two are adjourned to 13.09.19. As such, let fresh bailable warrants of other accused who are unserved for today except above three be issued for 3.10.2019. However till the decision of bail applications of all the above three applicants, no coercive process shall be initiated against them.

Accused who are absent.

A-116 : Nitin Rathore
A-119 : Vinay Kumpawat
A-121 : Paras Bolia
A-124 : Neha Gemawat
A-128 : Manish Chauhary
A-129 : Deepak Shrimali
A-132 : Meenakshi Modi
A-133 : Prakash Chandra Purohit
A-136 : Akshat Singh

A-139 : Naveen Kumar
A-141 : Aditya Sarda
A-143 : Sudhir Punia
A-146 : Leena Harivyasi
A-147 : Vimal Sanwarmal Sharma
A-154 : Bharat Kumar Mardia
A-160 : Shiv Raj Sharma.
A-162 : Naveen Choudhary
A-173 : Peeyush Aggarwal
A-174 : Paramvir Singh Sangwan
A-175 : Vijay Jhindal
A-177 : Rajiv Kumar Rana

Bailable warrants of the above mentioned accused received back unserved with different reports of non service, service through family members etc. However, it is argued by counsel for the complainant SFIO that all these accused have due knowledge of the summoning order and the proceedings going on and they are avoiding the service intentionally just to delay the proceedings. Heard. Out of the above accused, bail application of accused, Bharat Kumar Mardia is already dismissed. Whereas an application has been filed on behalf of accused No. 173, Peeyush Aggarwal to seek exemption. Finding no good ground in view of the fact that this applicant has been summoned for commission of non bailable offences that too in connection with a serious economic fraud, the application for exemption is dismissed. Then A-136 is other director with A-140, whose bail application is already dismissed and thus he knows the proceedings. A-119, has already approached the Hon'ble High Court but his bail plea has been declined, thus, he also knows the proceedings. A-121, A-173 and A-175 have already obtained the copies of complaint and record through their counsels and thus they also knows the proceedings. Thus in these facts and circumstances, the plea of the complainant, SFIO that all the accused are intentionally avoiding the service of bailable warrants is seems to be well founded plea in view of the reports on the processes. Then there are 187 accused in this case and all are also connected with each other as the offence in question is based on a deep

rooted conspiracy of main perpetrators of the crime with the present accused persons. Thus it is ordered that let warrant of arrest be issued against all the above accused persons for 03.10.19 but a copy of the complaint and material documents should also be served upon the accused except those have already obtained it as observed above at the time of their arrest. Let DCP HQ, Gurugram be deputed a special police party to execute the warrants but some responsible officials of the SFIO shall accompany the police party along with records to execute the warrants.

Accused, A-149 : Vijay Shukla

Present : Sh. Gautam Avasthi, Advocate, for the accused, A-149.

An application has been filed by Sh. Gautam Avasthi, Advocate, for accused, A-149, Vijay Shukla, alongwith copies of orders of the Hon'ble Supreme Court passed in Writ Petition (Criminal) No.239/2019 entitled "Vijay Shukla Vs. Union of India and others" dated 3.9.2019 vide which the Hon'ble Apex court listed the matter for 5.9.2019 with the connected matters and directed the applicant-accused to appear before this court with further direction that no coercive action will be taken against him till 5.9.2019. Accordingly the case be put up on 5.9.2019 for awaiting further orders qua this accused and further proceedings.

Accused who are in custody :

A-130	:	Jainam Rathod
A-150	:	Ajit Singh Rathore
A-158	:	Ramlal Arya
A-159	:	Hemant Kumar Jain
A-161	:	Praveen Kumar
A-179	:	Damyanti Bhandari
A-182	:	Nimesh Kumar Ramesh Chandri Soni
A-183	:	Rituraj Singh
A-184	:	Dushyant Singh Rathore
A-185	:	Shashank Shekhar Singh Rathore

A-186 : Jitesh Kumar Parmar.

Regular bail applications of all the above referred accused have already been dismissed. As such they are now in custody and produced before this court after expiry of 15 days custody. Heard. Pending further proceedings they are remanded to judicial custody till 16.9.2019 and be produced before this court.

Accused No.A-180 : Ichchhita Dungarwal

Present : Sh. Joydip Bhattacharya, counsel for above referred accused.

Today the case was fixed for furnishing surety bond on behalf of this accused No.180, Ichchhita Dungarwal as on the last date of hearing only personal bond was furnished but inadvertently in the order it was mentioned that requisite bonds have been furnished, whereas only personal bond was furnished. Be that as it may be. Today the accused has furnished the surety bond also which is accepted and attested. Now to come up on 3.10.2019, the date fixed for in the matter for further proceedings.

A-181 : Neha Kataria

Present : Accused Neha Kataria on bail with her counsel

Since this accused is already on bail, she is directed to appear on 03.10.19 for further proceedings.

04.09.2019
(ashok)

Sd/-
(Ravi Kumar Sondhi)
Sessions Judge, Gurugram
(UID No.HR0026)